

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----x
DJENEBA YALCOUYE,

SUMMONS

Plaintiff,

Plaintiff
designates Bronx
County as the
place of trial

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICERS AUGUSTO HERNANDEZ,
MIRANDA ORTIZ and NEW YORK CITY
POLICE OFFICERS JOHN DOES (#1-4),
fictitious names of male New York
City Police Officers involved,

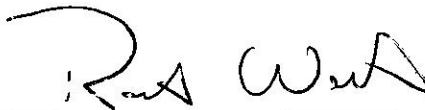
The basis for
venue is the
place of the
incident

Defendants.
-----x

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 28, 2016



ROBERT WASHUTA
Law Offices of Robert Washuta, P.C.
11 Broadway, Suite 615
New York, New York 10004
(212) 269-3025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
DJENEBA YALCOUYE,

Plaintiff,

Index No.

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICERS AUGUSTO HERNANDEZ,
MIRANDA ORTIZ and NEW YORK CITY
POLICE OFFICERS JOHN DOES (#1-4),
fictitious names of male New York
City Police Officers involved,

Defendants.
-----x

Plaintiff by her attorneys, the Law Offices of
Robert Washuta, P.C., complaining of the Defendants The
City of New York, New York City Police Department, New York
City Police Officers Augusto Hernandez, Miranda Ortiz and
New York City Police Officers John Does (#1-4), fictitious
names of male New York City Police Officers involved,
respectfully alleges, upon information and belief:

1. At all times herein mentioned, Plaintiff Djeneba
Yalcouye, was, and still is, a resident of Borough of the
Bronx, County of the Bronx and State of New York.

2. At all times herein mentioned, Defendant The City of
New York, was, and still is, a domestic municipal

corporation organized and existing under and pursuant to the laws of the State of New York.

3. At all times herein mentioned, Defendant New York City Police Department, was, and still is, a domestic municipal corporation organized and existing under and pursuant to the laws of the State of New York.

4. At all times herein mentioned, Defendant Augusto Hernandez, was, and still is a New York City Police Officer and a resident of Borough of the Bronx, County of the Bronx and State of New York.

5. At all times herein mentioned, Defendant Miranda Ortiz, was, and still is a New York City Police Officer and a resident of Borough of the Bronx, County of the Bronx and State of New York.

6. At all times herein mentioned, Defendants John Does (#1-4) were, and still are, fictitious names of male New York City Police Officers involved herein whose names have not been provided, despite a request for same from Police Officers/Detectives of the Defendant New York City Police Department.

7. At all times herein mentioned, Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) were acting

under color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York City Police Department, in the course and scope of their duties and functions as officers, agents, servants and employees of the Defendants City of New York and the New York City Police Department, were acting for and on behalf of and with the power and authority vested in them by the Defendants City of New York and the New York City Police Department and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

8. Plaintiff, prior to the commencement of this action, on November 19, 2015, served the Defendants The City of New York and the New York City Police Department with a Notice of Claim. This Notice of Claim was served within ninety days of the happening of the incident herein. This Notice of Claim was received by the New York City Comptroller's Office on November 19, 2015 and by the New York City Corporation Counsel's Office on November 19, 2015.

9. More than thirty (30) days have elapsed since the service of the Notices of Claim and the Defendants New York

City and the New York City Police Department, have not adjusted and failed, neglected and/or refused to make payment for such claim.

10. The Defendants The City of New York and the New York City Police Department, have noticed and conducted a statutory hearing pursuant to the General Municipal Law § 50-h of the Plaintiff on April 11, 2016.

11. This action is being brought within one (1) year and ninety (90) days of the happening of the incident herein.

12. On August 26, 2015, the date of the incident herein complained of, Plaintiff was advised she was going to be arrested by the Defendants Augusto Hernandez and Miranda Ortiz for an arrest warrant issued by the family court Bronx County while the Plaintiff and said Defendants were inside the premises known as 923 East 169th Street/1112 Fox Street, Bronx, New York where the hair braiding business known as My Braiding was located.

13. Plaintiff, upon being so advised, was cooperative, peaceful and agreed to follow the Defendants Hernandez and Ortiz directions.

14. Thereafter, Defendants John Does (#1-4) appeared at

the aforesaid premises and without conferring with Defendants Hernandez or Ortiz immediately grabbed the Plaintiff to arrest her without warning or justification.

15. Defendants Hernandez and Ortiz did not instruct Defendants John Does (#1-4) that the situation was under control, but instead immediately joined and participated in the physical grabbing and arrest of the Plaintiff.

16. During the course of the arrest, the Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) fractured the Plaintiff's right arm/shoulder despite the Plaintiff stating that they were hurting her right arm/shoulder and otherwise caused her personal injuries, including threatening and attempting to taser the Plaintiff's abdomen after the Plaintiff stated to said Defendants that she was pregnant at the time and not to use such device for the sake of her baby's safety, health and welfare and by throwing and forcing the Plaintiff to the floor on her pregnant stomach by kicking out her legs and pushing her torso forward to the floor causing the loss of her baby.

FIRST CAUSE OF ACTION
EXCESSIVE FORCE

17. Plaintiff repeats, re-alleges and reasserts of all the allegations set forth in each of the preceding paragraphs as if fully set forth herein.

18. The conduct and actions of the Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) acting in concert and under color of law in authorizing, directing and/or causing the Plaintiff personal injuries including, but not limited to, a fractured right arm/shoulder and loss of fetus was excessive and unreasonable was done intentionally, willfully, maliciously with deliberate indifference and/or a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of the Plaintiff's rights as guaranteed under 42 U.S.C. §1983 and the Fourth and Fourteenth Amendments to the United States Constitution, including the right to be free from an unreasonable seizure of her person and the right to be free from the use of excessive, unreasonable and unjustified force.

19. As a direct and proximate cause of the foregoing, the Plaintiff was subjected to great physical and emotional

pain and humiliation was deprived of her liberty and was injured including losing her baby and sustained lost earnings, incurred medical expenses, severe and permanent personal injuries and was otherwise damaged.

20. By reason of the foregoing, the Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION
ASSAULT AND BATTERY

21. Plaintiff repeats, re-alleges and reasserts of all the allegations set forth in each of the preceding paragraphs as if fully set forth herein.

22. Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) intentionally attempted and/or threatened to inflict personal injury/bodily harm on the Plaintiff with the apparent ability to cause injury and harm.

23. Said actions and conduct of the Defendants created a reasonable apprehension of imminent personal injury/bodily harm or offensive contact in the Plaintiff.

24. Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) intentionally made contact with the application of force to the body and person of the

Plaintiff in a harmful and/or offensive manner and without the Plaintiff's consent.

25. As a direct and proximate cause of the foregoing, the Plaintiff was subjected to great physical and emotional pain and humiliation was deprived of her liberty and was injured including losing her baby and sustained lost earnings, incurred medical expenses, severe and permanent personal injuries and was otherwise damaged.

26. By reason of the foregoing, the Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, including punitive damages.

THIRD CAUSE OF ACTION
INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS

27. Plaintiff repeats, re-alleges and reasserts of all the allegations set forth in each of the preceding paragraphs as if fully set forth herein.

28. Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) in intentionally and/or recklessly threatening and attempting to taser the abdomen of the Plaintiff after the Plaintiff stated she was pregnant and that she feared for the harm, injury and the safety of her

baby was extreme and outrageous conduct intended to cause severe emotional distress in the Plaintiff or with a disregard of a substantial probability of doing so.

29. Said actions by the Defendants was so outrageous in character and extreme in degree as to go beyond all possible bounds of decency and was atrocious and utterly intolerable in a civilized community.

30. Said actions by the Defendants did cause severe emotional injury and damages to the Plaintiff.

31. By reason of the foregoing, the Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction, including punitive damages.

FOURTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

32. Plaintiff repeats, re-alleges and reasserts of all the allegations set forth in each of the preceding paragraphs as if fully set forth herein.

33. Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) actions including assaulting, battering and negligently injuring and harming the Plaintiff were negligent as to the emotional health of the Plaintiff and

caused severe emotional distress to the Plaintiff.

34. By reason of the foregoing, the Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION
NEGLIGENCE

35. Plaintiff repeats, re-alleges and reasserts of all the allegations set forth in each of the preceding paragraphs as if fully set forth herein.

36. The Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) had a duty to not use excessive force and to exercise reasonable care in the performance of their duties toward the Plaintiff.

37. The Defendants breached the aforesaid duty by the use of excessive force and unreasonable care as to the Plaintiff.

38. Thus Defendants aforesaid breach caused personal injuries and damages to the Plaintiff, including but not limited to, losing her baby, lost earnings, medical expenses, severe and permanent personal injuries and was otherwise damaged.

39. By reason of the foregoing, the Plaintiff has been

damaged in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION
RESPONDEAT SUPERIOR

40. Plaintiff repeats, re-alleges and reasserts of all the allegations set forth in each of the preceding paragraphs as if fully set forth herein.

41. The Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) conduct herein occurred in the course, scope, authority and function of their employment as Police Officers for the Defendants New York City and the New York City Police Department.

42. As such, the Defendants New York City and the New York City Police Department are liable for the injuries and damages caused by the Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4) under the doctrine of Respondeat Superior.

43. By reason of the foregoing, the Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION AND RETENTION

44. Plaintiff repeats, re-alleges and reasserts of all

the allegations set forth in each of the preceding paragraphs as if fully set forth herein.

45. The aforesaid incident was caused solely by the Defendants the City of New York and/or New York City Police Department's negligence in hiring, training, supervision and retention of the Defendants Augusto Hernandez, Miranda Ortiz and John Does (#1-4).

46. As a result of the aforesaid incident the Plaintiff sustained personal injuries and damages, including but not limited to, losing her baby, lost earnings, medical expenses, severe and permanent personal injuries and was otherwise damaged.

47. By reason of the foregoing, the Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

WHEREFORE, the Plaintiff Djeneba Yalcouye demands judgment against the Defendants the City of New York, the New York City Police Department, Augusto Hernandez, Miranda Ortiz and John Does (#1-4) for the aforesaid causes of action for compensatory and punitive damages including for severe and permanent personal injuries, loss of fetus, lost earnings, medical expenses and other damages in a sum

exceeding the jurisdictional limits of all lower courts
that would otherwise have jurisdiction, together with the
costs and disbursements of this action.

Dated: New York, New York
April 28, 2016



Robert Washuta
Law Offices of Robert Washuta, P.C.
11 Broadway, Suite 615
New York, New York 10004
(212) 269-3025

ATTORNEY'S VERIFICATION

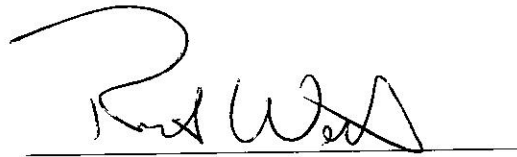
The undersigned, an attorney admitted to practice law in the State of New York, affirms under the penalties of perjury:

The deponent is the attorney of record for the Plaintiff in the within action; the deponent has read the foregoing Complaint and knows the contents thereof; that the same is true to the deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for the deponent's belief as to all matters not stated upon his knowledge are the facts, information, records, statements in his file as well as upon his investigations which he made or has caused to be made concerning the subject matter of this action.

Deponent further states that the reason this Verification is made by the deponent and not by the plaintiff is that the plaintiff resides in a county other than that in which deponent maintains his offices.

Dated: New York, New York
April 28, 2016



ROBERT WASHUTA, ESQ.